

		complaint to attorney did not constitute actual notice, nor should the inexcusable neglect of attorney in failing to communicate with party about the filing of the litigation be imputed on party].) Thus, relief is also available under Code of Civil Procedure section 473.5. Based on the foregoing, the Court GRANTS Defendant's motion to set aside and vacate entry of default and default judgment under Code of Civil Procedure sections 473(d) and 473.5. The default entered on January 30, 2026, and the default judgment entered on March 16, 2026, are set aside and vacated. Defendant to file and serve their proposed Answer within 10 days. In light of the foregoing, the Court declines to address Defendant's additional arguments that the entry of default and default judgment should be set aside and vacated under Code of Civil Procedure section 473(b), or based on equitable relief. Defendant to give notice
107	Neri Bahena vs. Gregory's Pallet Inc. 22-01281126	1. Motion for Terminating Sanctions In light of Plaintiff's pending motion for reconsideration of this Court's April 14, 2026, ruling on demurrer, the Motion for Terminating Sanctions is CONTINUED to 09/15/2026 at 10:00 a.m. in Department C25. Moving party to give notice. 2. Case Management Conference continued to 09/15/2026 at 10:00 AM Clerk to give notice.